

Our Ref: SJM:JAT:2023:520
Your Ref: ALR:ALR:13629

22 January 2024

A Roberts
Delaney Roberts
274 Brunker Road
ADAMSTOWN NSW 2289

Dear Colleague,

Re: NCC3896/2023Cooke and Cooke Family Law Matter

Our client recently had a conversation with the parties' eldest child, Christian, during which he learned that, whenever the children call their Father from your client's mobile phone, they see a photograph of our client sitting on the couch crying.

Given the distress this clearly caused Christian, we kindly request that your client promptly remove the photograph from any place where the children may come across it.

This revelation is particularly concerning in the context of recent mediation where it was mutually agreed not to continue with regular weekly calls to our client because of the distress they caused the children. Seeing a photograph of their father upset each time they call can only be damaging to the children.

Initially, our client hesitated to raise this issue, as Christian, mentioned it spontaneously during a bedtime conversation and subsequently asked our client not to say anything. Our client agreed not to discuss it further, respecting Christian's request. However, upon careful reflection and considering the evident distress the photograph has caused, our client now believes that addressing this matter openly is in the best interests of the children. Accordingly, we simply ask that the photograph be removed or replaced and that this matter **not** be raised with the children in any way.

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We kindly ask for confirmation once the photograph has been removed or replaced.

Yours faithfully,

A handwritten signature in black ink, appearing to read 'S. Miller', with a stylized flourish at the end.

Samantha Miller

Director and Principal Solicitor

Clarity Lawyers

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LLM (Applied Law) Majoring in Family Law

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